

his Motion to Stike until September 18, 2025, rendering it untimely.

Plaintiff's Motion is not Brought Pursuant to CCP § 473

Additionally, Plaintiff's Motion is improper because the plain language of the code provides for a specific mechanism to challenge a DNMS which Plaintiff has failed to comply with, rendering his Motion fatally defective. The statute requires the parties that seek to challenge a DNMS through the framework of a motion pursuant to Section 473 of the Code of Civil Procedure. Plaintiff did not do so here, rendering his motion improper and fatally defective

Conclusion

In consideration of the above, **Plaintiff's Motion to Strike is denied.**

9. 9:00 AM CASE NUMBER: C25-01567
CASE NAME: ALEXIS DEAN VS. MONTE GARDENS ELEMENTARY SCHOOL (MOUNT DIABLO UNIFIED SCHOOL DISTRICT)
HEARING ON DEMURRER TO: COMPLAINT
FILED BY: MOUNT DIABLO UNIFIED SCHOOL DISTRICT
TENTATIVE RULING:

Department 309 (Judge Treat) recuses himself from this case. The demurrer is **continued** to January 23, 2026, so that it can be heard in the regularly assigned Department 32 (Judge Hiramoto).

10. 9:00 AM CASE NUMBER: C25-01730
CASE NAME: RINNOVO GROUP INC VS. ARMOR CONTRACTING COMPANY
***HEARING ON MOTION IN RE: LEAVE OF COURT TO INTERVENE ON BEHALF OF ITS INSURED ARMOR CONTRACTING COMPANY**
FILED BY: SCOTTSDALE INSURANCE COMPANY
TENTATIVE RULING:

This was handled by stipulation.

11. 9:00 AM CASE NUMBER: C25-01931
CASE NAME: NOEL LINARES VS. THI TRANG NGUYEN
***HEARING ON MOTION IN RE: TRIAL PREFERENCE**
FILED BY: LINARES, NOEL
TENTATIVE RULING:

Plaintiff moves for trial preference. The motion is expressly unopposed. The motion is therefore **granted**, and the parties are to appear (Zoom okay) to discuss a trial date.